

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO S.B. 1603
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 46-101, Arizona Revised Statutes, is amended to
3 read:

4 46-101. Definitions

5 In this title, unless the context otherwise requires:

6 1. "Aid to families with dependent children" means assistance
7 granted under section 403 of title IV of the social security act as it
8 existed before August 22, 1996.

9 2. "Applicant" means a person who has applied for assistance or
10 services under this title, or a person who has applied for assistance or
11 services under this title and who has custody of a dependent child.

12 3. "Assistance" means payments in cash or kind to or on behalf of a
13 person or persons in need as provided for in this title.

14 4. "Assistance unit" means those members of a needy family, as
15 prescribed by the department in rule, or a child only case, that meets the
16 nonfinancial eligibility criteria for cash assistance and whose needs and
17 other circumstances are considered as a whole to determine a cash
18 assistance benefit amount.

19 5. "Cash assistance" means temporary assistance for needy families
20 paid to a recipient for the purpose of meeting basic living expenses as
21 defined by the department.

22 6. "Child care personnel" means any person who supervises children
23 in a day care home or center that receives child care food program monies
24 under this article.

25 7. "Child only case" means a case in which the eligible dependent
26 child is EITHER OF THE FOLLOWING:

27 (a) In the legal custody of the department of child safety, a
28 tribal court or a tribal child welfare agency located in this state and

1 placed in foster care with an unrelated adult or with a nonparent relative
2 who is not receiving cash assistance OR A LICENSED FOSTER ~~CAR~~ CARE
3 PAYMENT.

4 (b) PLACED PURSUANT TO THE ORDER OF A COURT OR TRIBAL COURT WITH AN
5 UNRELATED ADULT OR WITH A NONPARENT RELATIVE WHO IS NOT RECEIVING CASH
6 ASSISTANCE.

7 8. "Dependent child" means a needy child who has been deprived of
8 parental support or care by reason of the death, unemployment of the
9 supporting parent as defined and prescribed by the rules of the
10 department, continued absence from the home, or physical or mental
11 incapacity of a parent, and whose relatives who are responsible under the
12 law for the child's support are not able to provide adequate care and
13 support of the child without public assistance, and who is living with his
14 father, mother, grandfather, grandmother, brother, sister, stepfather,
15 stepmother, stepbrother, stepsister, uncle, aunt, niece, nephew or cousin
16 in a place of residence maintained by one or more of such relatives as his
17 or their own home or who is in the legal custody of the department of
18 child safety and placed in a foster home or with an unrelated adult as a
19 recipient of temporary assistance for needy families. Such dependent
20 child must be under eighteen years of age or, if eighteen, must be a
21 full-time student in a high school, or in the equivalent level of
22 vocational or technical training, and shall be reasonably expected to
23 complete the program before reaching age nineteen.

24 9. "Director" means the director of the department of economic
25 security.

26 10. "Domestic violence" means battered or subject to extreme
27 cruelty as defined in section 408(a)(7)(C)(iii) of the social security
28 act.

29 11. "Employment plan" means an agreement between the department and
30 the cash assistance recipient regarding the participant's work activities
31 and services provided by the department.

32 12. "Federal poverty level" means the poverty guidelines that are
33 issued by the United States department of health and human services
34 pursuant to section 673(2) of the omnibus budget reconciliation act of
35 1981 and that are reported annually in the federal register.

36 13. "Head of household" means a dependent child's parent or the
37 spouse of the parent, or the dependent child's nonparent relative or
38 spouse of the nonparent relative, who receives cash assistance for himself
39 and on behalf of the dependent child or only on behalf of the dependent
40 child.

41 14. "Homestead property" means a home owned and occupied by the
42 applicant or recipient, or his spouse.

43 15. "Jobs program" means services established by the department to
44 ensure that participants comply with work requirements as prescribed in
45 Public Law 104-193.

46 16. "Needy family":

1 (a) Means a family that resides in the same home and includes a
2 dependent child, one or more of the dependent child's parents and
3 nonparent relatives of the dependent child and their spouses who meet
4 financial cash assistance eligibility criteria established by this title
5 and by department rule.

6 (b) Does not include a child only case.

7 17. "Nonparent relative" means a dependent child's grandfather,
8 grandmother, brother, sister, stepfather, stepmother, stepbrother,
9 stepsister, uncle, aunt, niece, nephew or cousin and includes a permanent
10 guardian who is appointed pursuant to section 8-872.

11 18. "Participant" means a recipient of cash assistance engaged in
12 work activities through the JOBS program.

13 19. "Personal responsibility declaration" means a document that is
14 prescribed by the department and in which the applicant acknowledges
15 understanding of the applicant's personal responsibility.

16 20. "Recipient" means a person who receives assistance or services
17 under the provisions of this title.

18 21. "Services" includes social casework, rehabilitation counseling
19 and similar services rendered to a person or persons in need as provided
20 for in this title.

21 22. "Sponsor" means any political subdivision of this state, any
22 federally recognized Indian tribe, any military base or any other person,
23 partnership, corporation or association contracting with this state to
24 provide assistance in the distribution of child care food program monies
25 pursuant to this article.

26 23. "State department" or "department" means the department of
27 economic security.

28 24. "Temporarily deferred" means the postponement of work
29 activities.

30 25. "Temporary assistance for needy families" means assistance
31 granted under section 403 of title IV of the social security act as it
32 exists after August 21, 1996.

33 26. "Vendor payment" means any payment to a person other than the
34 recipient on his behalf.

35 27. "Work activities" means the following activities that are
36 countable toward the federal work participation rate as prescribed in
37 Public Law 104-193, section 407 (1996):

38 (a) Unsubsidized employment.

39 (b) Subsidized private or public employment.

40 (c) Work experience.

41 (d) On-the-job training.

42 (e) Job search and job readiness assistance.

43 (f) Community service programs.

44 (g) Vocational educational training.

45 (h) Job skills training directly related to employment.

1 (i) Education directly related to employment in the case of a
2 recipient who has not received a high school diploma or a certificate of
3 high school equivalency.

4 (j) Satisfactory attendance at secondary school or in a course of
5 study leading to a certificate of general equivalency, in the case of a
6 recipient who has not completed secondary school or received such a
7 certificate.

8 Sec. 2. Section 46-292, Arizona Revised Statutes, is amended to
9 read:

10 46-292. Eligibility for assistance

11 A. A family without a dependent child in the household may not
12 receive cash assistance.

13 B. Cash assistance may be given under this title to any dependent
14 child and member of a needy family:

15 1. Who has established residence in Arizona at the time of
16 application and who is either:

17 (a) A citizen by birth or naturalization.

18 (b) A qualified alien who entered the United States on or before
19 August 21, 1996.

20 (c) A qualified alien who entered the United States as a member of
21 one of the exception groups under Public Law 104-193, section 412, in
22 which case the person shall be determined eligible in accordance with
23 Public Law 104-193.

24 (d) Defined as a qualified alien by the attorney general of the
25 United States under the authority of Public Law 104-208, section 501.

26 For the purposes of subdivisions (b) and (c) of this paragraph, "qualified
27 alien" means a person who is defined as a qualified alien under Public Law
28 104-193, section 431.

29 2. If the parent or parents of the dependent child or the nonparent
30 relative head of household receiving assistance, if employable, does not
31 refuse to accept available employment. The department shall assess the
32 applicant's employability at the time of initial application for
33 assistance to establish a self-sufficiency diversion option, if
34 appropriate, before benefit issuance. The determination of employability
35 and the conditions under which employment shall be required shall be
36 determined by the state department, except that claimed unemployability
37 because of physical or mental incapacity shall be determined by the state
38 department in accordance with this title.

39 3. If the parent or parents of the dependent child or the nonparent
40 head of household in a needy family has not, within one year before
41 application, or while a recipient, transferred or assigned real or
42 personal property with the intent to evade federal or state eligibility
43 requirements. Transfer of property with retention of a life estate for
44 the purpose of qualifying for assistance is prohibited. Where fair
45 consideration for the property was received, no inquiry into motive is
46 necessary. A person found ineligible under this section shall be
47 ineligible for such time as the state department determines.

1 4. Who meets the requirements of this section and department rule
2 to qualify as part of the assistance unit.

3 C. Qualified aliens entering the United States after August 21,
4 1996 are ineligible for benefits for a period of five years beginning on
5 their date of entry, except for Cuban and Haitian entrants as defined in
6 section 501(e)(2) of the refugee education assistance act of 1980 and
7 exceptions provided under Public Law 104-193 (personal responsibility and
8 work opportunity reconciliation act of 1996) and Public Law 105-32
9 (balanced budget act of 1997).

10 D. A parent or any other relative who applies for or who receives
11 cash assistance under this title on behalf of a child shall cooperate with
12 the department by taking the following actions:

13 1. Providing information regarding the identity of the child's
14 father and mother and other pertinent information including their names,
15 social security numbers and current addresses or a sworn statement that
16 attests to the lack of this information and that is accompanied by facts
17 supporting the asserted lack of information.

18 2. Appearing at interviews, hearings and legal proceedings.

19 3. Submitting and having the child submit to genetic testing.

20 4. Signing authorizations for third parties to release information
21 concerning the applicant or the child, or both.

22 5. In cases in which parentage has not been established, providing
23 a sworn statement alleging paternity and setting forth facts establishing
24 a reasonable possibility of the requisite sexual contact between the
25 parties.

26 6. Supplying additional information the department requires.

27 E. The department shall sanction a recipient who, without good
28 cause as prescribed in subsection F of this section, fails to cooperate
29 with child support enforcement efforts according to the sanction
30 provisions of section 46-300.

31 F. One or more of the following circumstances constitute good cause
32 for failure to cooperate with child support enforcement efforts:

33 1. Cooperation may result in physical or emotional harm to the
34 parent, child for whom support is sought or caretaker relative with whom
35 the child is living.

36 2. Legal proceedings for adoption of the child for whom support is
37 sought are pending before a court.

38 3. The participant has been working, for less than ninety days,
39 with a public or licensed private social agency on the issue of whether to
40 allow the child for whom support is sought to be adopted.

41 4. The child for whom support is sought was conceived as a result
42 of sexual assault pursuant to section 13-1406 or incest.

43 G. A person claiming good cause has twenty days ~~from~~ AFTER the date
44 the good cause claim is provided to the agency to supply evidence
45 supporting the claim. When determining whether the parent or relative is
46 cooperating with the agency as provided in subsection D of this section,
47 the agency shall require:

1 1. If the good cause exception in subsection F, paragraph 1 of this
2 section is claimed, law enforcement, court, medical, criminal,
3 psychological, social service or governmental records or sworn statements
4 from persons with personal knowledge of the circumstances that indicate
5 that the alleged parent or obligor might inflict physical harm on the
6 parent, child or caretaker relative.

7 2. If the good cause exception in subsection F, paragraph 2 of this
8 section is claimed, court documents that indicate that legal proceedings
9 for adoption are pending before a court of competent jurisdiction.

10 3. If the good cause exception in subsection F, paragraph 3 of this
11 section is claimed, records from a public or licensed private social
12 services agency showing that placing the child for whom support is sought
13 is under consideration.

14 4. If the good cause exception in subsection F, paragraph 4 of this
15 section is claimed, law enforcement, court, medical, criminal,
16 psychological, social service or governmental records or sworn statements
17 from persons with personal knowledge of the circumstances surrounding the
18 conception of the child that indicate the child was conceived as a result
19 of sexual assault pursuant to section 13-1406 or incest.

20 H. Notwithstanding subsection B of this section and except as
21 provided in subsection I of this section, a dependent child or children
22 who are born during one of the following time periods are not eligible for
23 assistance under this title:

24 1. The period in which the parent or other relative is receiving
25 assistance benefits.

26 2. The temporary period in which the parent or other relative is
27 ineligible pursuant to a penalty imposed by the department for failure to
28 comply with benefit eligibility requirements, after which the parent or
29 other relative is eligible for a continuation of benefits.

30 3. Any period after November 1, 1995 that is less than sixty months
31 between a voluntary withdrawal from program benefits or a period of
32 ineligibility for program benefits ~~which~~ THAT immediately followed a
33 period during which program benefits were received and a subsequent
34 reapplication and eligibility approval for benefits.

35 I. The following exceptions apply to subsection H of this section:

36 1. The department shall allow an increase in cash assistance under
37 the program for a dependent child or children born as a result of an act
38 of sexual assault pursuant to section 13-1406 or incest. The department
39 shall ensure that the proper law enforcement authorities are notified of
40 allegations of sexual assault or incest made pursuant to this paragraph.
41 For the purposes of this paragraph, "an act of sexual assault" includes
42 sexual assault of a spouse if the offense was committed before August 12,
43 2005.

44 2. For those parents or other relatives who are currently
45 authorized for cash assistance the department shall allow an increase in
46 cash assistance under the program as a result of the birth of a child or
47 children to the parent or other relative only if the birth occurred within

1 ten months ~~of~~ AFTER the initial eligible month. The department may use
2 only the additional child or children who are born from the pregnancies
3 covered in this subsection in computing the additional benefit.

4 3. The department shall allow an increase in cash assistance for
5 any dependent child born to a parent who has not received cash assistance
6 under this title for at least twelve consecutive months if the child is
7 born within the period beginning ten months after the twelve consecutive
8 month period and ending ten months after the parent resumes receiving cash
9 assistance.

10 4. A dependent child or children who were born during a period in
11 which the custodial parent received cash assistance through the Arizona
12 works program shall be eligible to receive assistance under this title.

13 5. A dependent child or children who were born within ten months
14 after the custodial parent received cash assistance through the Arizona
15 works program shall be eligible to receive assistance under this title.

16 6. The department of economic security shall allow cash assistance
17 for an otherwise eligible dependent child during the period in which the
18 dependent child is in the legal custody of the department of child safety,
19 a tribal court or a tribal child welfare agency located in this state and
20 is placed in unlicensed kinship foster care with a nonparent relative or
21 unrelated adult.

22 7. The department shall allow cash assistance for an otherwise
23 eligible child who meets one of the following:

24 (a) The court has placed the child with a nonparent relative.

25 (b) The child's parents are deceased and the child is living with a
26 nonparent relative.

27 (c) A nonparent relative has custody of the child because the child
28 is abandoned as defined in section 8-201.

29 J. The department shall calculate the sixty-month time period
30 referenced in subsection H, paragraph 3 of this section in the following
31 manner:

32 1. For persons who are receiving cash assistance on November 1,
33 1995, the sixty-month time period begins on November 1, 1995. A
34 subsequent sixty-month time period begins immediately after the previous
35 period ends if the person is receiving cash assistance through two
36 sixty-month periods. If the individual is not receiving cash assistance
37 at the end of the previous sixty-month period, any subsequent sixty-month
38 time period begins on the date when cash assistance became effective
39 again, regardless of when the person received an actual payment.

40 2. For persons who begin receiving cash assistance after November
41 1, 1995, the sixty-month time period begins on the date cash assistance
42 becomes effective, regardless of when the person received an actual
43 payment. A subsequent sixty-month period begins as provided in paragraph
44 1 of this subsection.

45 K. In calculating a parent's or any other relative's benefit
46 increase that arises from any general increase that has been approved for
47 all program recipients, the department shall not consider a child or

1 children born under the time periods listed in subsection H of this
2 section.

3 L. For the parents or other relatives who have additional children
4 for whom they receive no cash assistance payment under subsection H of
5 this section, the department shall make any necessary program amendments
6 or request any necessary federal waivers to allow the parents or other
7 relatives to earn income in an amount equal to the disallowed cash
8 assistance payment without affecting their eligibility for assistance.

9 M. The director shall adopt rules:

10 1. To implement this section, including rules to define the
11 investigatory steps that must be taken to confirm that an act of sexual
12 assault pursuant to section 13-1406 or incest led to the birth of a
13 dependent child or children.

14 2. That require the department to inform both verbally and in
15 writing the parents and other relatives who are receiving assistance under
16 this article of the specific family planning services that are available
17 to them while they are enrolled as eligible persons in the Arizona health
18 care cost containment system.

19 N. This section does not prevent an otherwise eligible child who is
20 not included in the family's calculation of benefits under this article
21 from being eligible for coverage under title 36, chapter 29 or for any
22 services that are directly linked to eligibility for the temporary
23 assistance for needy families program.

24 O. Assistance shall not be denied or terminated under this article
25 because the principal wage earner works one hundred or more hours per
26 month.

27 P. Except as provided in paragraph 2 of this subsection, all
28 members of a needy family, including stepparents, must meet the same
29 financial eligibility criteria established in this title, by department
30 rule and as follows:

31 1. The department shall include all income from every source
32 available to a needy family requesting cash assistance, except income that
33 is required to be disregarded by this subsection and as determined by the
34 department in rules. For the amount of income that is received from
35 employment, each month every employed person is entitled to receive an
36 earned income disregard of ~~ninety dollars~~ \$90 plus an additional thirty
37 percent of the remaining earned income. A needy family that includes an
38 employed person is entitled to an earned income disregard equal to the
39 actual amount billed to the household for the care of an adult or child
40 dependent household member, up to ~~two hundred dollars~~ \$200 a month for a
41 child under two years of age and up to ~~one hundred seventy-five dollars~~
42 \$175 a month for each other dependent. This dependent care disregard is
43 allowed only if the expense is necessary to allow the household member to
44 become or remain employed or to attend postsecondary training or education
45 that is preparatory to employment.

46 2. The total gross countable income of a needy family ~~that includes~~
47 ~~a nonparent relative head of household who is not applying for or~~

1 ~~receiving cash assistance and who is requesting cash assistance only for a~~
2 ~~dependent child~~ shall not exceed one hundred thirty percent of the federal
3 poverty guidelines.

4 Q. If the total gross countable income in subsection P, paragraph 2
5 of this section does not exceed one hundred thirty percent of the federal
6 poverty guidelines, in determining benefit amount, the department shall
7 exclude the income of all members of the needy family except for the
8 income of the eligible dependent child for whom cash assistance is
9 requested.

10 R. For the purposes of eligibility and benefit amount, ~~FOR A CHILD~~
11 ~~ONLY CASE, BOTH OF THE FOLLOWING APPLY:~~

12 1. Only the income of the dependent child is considered for a child
13 only case.

14 2. THE BENEFIT AMOUNT IS BASED ON AVAILABLE MONIES AS DETERMINED BY
15 THE DEPARTMENT.

16 S. Any parent or other relative who applies for or receives cash
17 assistance under this article on behalf of a dependent child who is
18 between six and sixteen years of age shall ensure that the child is
19 enrolled in and attending school. An initial applicant is ineligible for
20 benefits until the applicant's dependent children are verified to be
21 enrolled in and attending an educational program. The department of
22 education shall assist the department of economic security in obtaining
23 verification of school enrollment and attendance. The director of the
24 department of economic security may adopt rules for granting good cause
25 exceptions from this subsection. The department of economic security
26 shall sanction a recipient who fails, without good cause, to ensure school
27 enrollment and attendance according to section 46-300.

28 T. Any parent or other relative who applies for or receives cash
29 assistance under this section on behalf of a dependent child shall ensure
30 that the child is immunized in accordance with the schedule of
31 immunizations pursuant to section 36-672. The director of the department
32 of economic security may adopt rules for granting good cause exceptions
33 from this subsection. The department of economic security shall sanction
34 a recipient, in accordance with section 46-300, who fails, without good
35 cause, to obtain the required immunizations for a dependent child unless
36 the recipient submits to the department of economic security the
37 documentation described in section 15-873.

38 Enroll and engross to conform

39 Amend title to conform

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